

VCU310362 Valadez, Brenda et al vs. DLR Management Group, Inc.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-27

Motion: Plaintiff's Motions to Enforce Court Orders re: Defendant Kamohai as to (1) Further Responses to Form Interrogatories (Set One); (2) Further Responses to Form Interrogatories (Set Two); (3) Further Responses to Request For Production of Documents (Set One) (4) Further Responses to Requests for Admissions (Set One)

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Re: Valadez, Brenda et al vs. DLR Management Group, Inc.

Case No.: VCU310362

Date: July 27, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Plaintiff's Motions to Enforce Court Orders re: Defendant Kamohai as to (1) Further Responses to Form Interrogatories (Set One); (2) Further Responses to Form Interrogatories (Set Two); (3) Further Responses to Request For Production of Documents (Set One) (4) Further Responses to Requests for Admissions (Set One)

Tentative Ruling: (1) through (4): To continue these motions to September 28, 2026, 8:30 am, Dept. 9.

Facts Common to (1) through (4)

On April 10, 2026, Defendant Robert John Kamohai's counsel, David M. Hillings, Esq. of Clinton & Clinton moved to be relieved as counsel. The Court notes that this document reflected an address of 1811 Early View Dr, Anchorage, AK 99504 associated with Defendant Kamohai. The Court notes here that the declaration in support of this motion indicated that counsel has been unable to communicate with Defendant since November 12, 2025 and Defendant has been wholly nonresponsive to attempts to communicate since that time.

On April 16, 2026, this Court entered an order as to discovery related to Defendant Kamohai as follows:

1. Plaintiffs' Motion to Compel the Deposition of Defendant Robert Kamohai is GRANTED. IT IS ORDERED that Defendant Robert Kamohai appear for his deposition within 7 days from the date of the hearing. IT IS FURTHER ORDERED that Defendant Robert Kamohai and Counsel of record jointly and severally, pay monetary sanctions to Plaintiffs and their attorney, Rodriguez & Associates, in the amount of \$500, within (30) thirty days from the date of this hearing.

2. Plaintiffs' Motion to Compel Further Responses to Form Interrogatories (Set One) is GRANTED. IT IS ORDERED that Defendant Robert Kamohai provide Further Responses to Form Interrogatories (Set One) within 10 days from the date of this hearing.

3. Plaintiffs' Motion to Compel Further Responses to Request for Production (Set One) is GRANTED. IT IS ORDERED that Defendant Robert Kamohai provide Further Responses to Request for Production (Set One) Nos. 17, 18, 23, and 26, within 10 days from the date of this hearing. IT IS FURTHER ORDERED that Defendant Robert Kamohai and Counsel of record jointly and severally, pay monetary sanctions to Plaintiffs and their attorney, Rodriguez & Associates, in the amount of \$500, within (30) thirty days from the date of this hearing.

4. Plaintiffs' Motion to Compel Further Verified Responses to Request for Admissions (Set One) is GRANTED. IT IS ORDERED that Defendant Robert Kamohai provide Further Verified Responses to Request for Admissions (Set One) Nos. 1, 2, 6, 7, 8, 9, 10, 11, 12, and 13, within 10 days from the date of this hearing.

5. Plaintiffs' Motion to Compel Further Responses to Form Interrogatories (Set Two) is GRANTED. IT IS ORDERED that Defendant Robert Kamohai provide Further Responses to Form Interrogatories (Set Two) within 10 days from the date of this hearing.

On June 1, 2026, this Court signed an order relieving counsel, David M. Hillings, Esq. CLINTON & CLINTON as to Defendant Robert John Kamohai. However, this order is not effective until proof of personal service has been submitted thereof. No such proof of personal service has been provided. As such, Counsel Hillings, and the firm, remain counsel for Defendant Kamohai.

On June 22, 2026, Plaintiff filed four discovery motions related to enforcement of the April 16, 2026 order:

1) Motion to Enforce Court Order re: Form Interrogatory, Set One, No. 2.6, for issue and evidentiary sanctions, and for monetary sanctions in favor of Plaintiff's counsel and the Court.

2) Motion to Deem Admissions Admitted as to Requests for Admissions, Set One, 1-2, 6-13 based on Defendant Kamohai's failure to obey the April 16, 2026 order, and for monetary sanctions in favor of Plaintiff's counsel and the Court.

3) Motion to Enforce Court Order re: Form Interrogatory, Set One, Nos. 17, 18, 23, and 26, for issue and evidentiary sanctions, and for monetary sanctions in favor of Plaintiff's counsel and the Court.

4) Motion to Enforce Court Order re: Form Interrogatory, Set Two, No. 17.1, and for monetary sanctions in favor of Plaintiff's counsel and the Court.

However, these motions were filed June 16, 2026 and set for hearing initially on July 13, 2026.

These motions were served by "personal service" and "electronic mail" on Counsel Hillings (as counsel for Defendants Ryder, AG, Bowman and Extra), other counsel in this matter, Defendant Macuixtleruiz and Defendant Kamohai at "51462 Koehler Ave, Keni AK 99611."

The Court continued these motions to this hearing date to permit 16 court days between filing, and service (as extended by electronic service), and the hearing dates.

In opposition to these motions, Defendant Kamohai, via still retained counsel, argues that because the order as to withdrawal of counsel has not been personally served, and no proof of service has been filed, "Kamohai has no notice of the pending discovery motions or that a request is being made for monetary sanctions against him." Further, the opposition notes service at "51462 Koehler Ave., Keni, AK, 99611" of these motions, which differs from the address noted by counsel in the motion to withdraw, "1811 Early View Dr., Anchorage, AK, 99504."

Additionally, the opposition notes a pending motion to intervene by National Specialty Insurance Company (NSIC) on behalf of Kamohai, its insured.

In reply, Plaintiff notes personal service on Kamohai of these motions, using a private investigator "to track down KAMOHAI to his latest address in rural Alaska where they completed personal service of the moving papers by leaving them with KAMOHAI's adult wife/co-occupant, Mrs. Sarah Kamohai, pursuant to CCP § 1011(b)."

(1) through (4) - Authority and Analysis

It appears to the Court, at this point, that there exists a new address for Defendant Kamohai which would permit the service of the April 16, 2026 order.

Therefore, Kamohai would appear to be able to be personally served under Code of Civil Procedure section 1101(b) with the order permitting withdrawal of counsel.

Further, it remains unclear whether Kamohai has notice of the April 16, 2026 order and his outstanding discovery obligations.

The Court is unwilling to grant the present motions ordering compliance with the order, as well as a variety of sanctions, at this point in time, absent notice of the April 16, 2026 order and some opportunity to comply. It is unclear to the Court whether such an opportunity has been provided.

The Court does not find that Counsel Hillings has acted in bad faith as to the lack of communication with Kamohai, the inability to locate Kamohai regarding the outstanding discovery orders or withdrawal of counsel order. However, at this point in time, it appears service on Kamohai is obtainable.

As such, the Court will continue this matter to September 28, 2026, 8:30 am, Dept. 9, to be heard at the same time as NISC's motion to intervene.

By this time, the Court expects Counsel Hillings to have personally served both the April 16, 2026 order, as well as any discovery necessary to comply therewith, on Kamohai, as well as the order re: withdrawal of counsel.

At the continued hearing, the Court will address the impact, if any, of NISC's motion as to the outstanding discovery re: Kamohai.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.